

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: June 24, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER ON COMPLAINANT’S MOTION FOR EXTENSION OF DISCOVERY DEADLINE

This matter came on for consideration of Complainant’s Cool Living’s Motion for Extension of the June 13 Deadline for the Limited Purpose of Deposing Respondents’ Witness Michael Haahr in his Individual Capacity filed June 16, 2026 (Dkt. 28); and Respondents’ Opposition to Complainant’s Motion for Extension of the June 13 Deadline to Depose Michael Haahr Hansen¹ filed June 22, 2026. For the reasons set forth below: the motion is **GRANTED IN PART and DENIED IN PART** subject to the conditions set forth in this order; the discovery period is extended to July 13, 2026, for the limited purpose of allowing Complainant to depose Michael Haahr in his individual capacity assuming that his attendance can be secured by subpoena or voluntary appearance within that time frame; the Order on Motion to Withdraw (Dkt. 22) and Order Following Status Conference (Dkt. 27) are **VACATED** to the extent they conflict with this order; and Holland & Knight LLP is directed to represent Complainant at any deposition of Michael Haahr taken during the extended discovery period and for all ancillary matters related thereto.

I. Background

The completion of discovery in this proceeding has been complicated by the differences that developed between Complainant and its counsel Holland & Knight LLP (“the Firm”) that culminated in the Firm filing a motion to withdraw on June 8, 2026, shortly before the then-established discovery deadline of June 13, 2026 (Dkt. 16, 20.)

In the motion to withdraw, the firm represented, among other things, that:

¹ Respondents identify the deposition witness at issue as “Michael Haahr Hansen” and refer to him throughout the opposition as “Mr. Hansen” despite that Complainant identifies the witness in the motion as “Michael Haahr.” For purposes of clarity and understanding that the parties both refer to the same individual, this order identifies the subject witness by the name used in the motion, Michale Haahr, but any reference to Michael Haahr in this order includes the individual identified by Respondents as Michael Haahr Hansen.

withdrawal can be accomplished without material adverse effect on the interests of the client in that there are no pending motions, discovery obligations have been satisfied (in responses to document request and interrogatories, along with the production of documents), no outstanding discovery demands are pending and no notices of deposition issued (though ALPI advised it will seek one deposition of Cool Living when counsel for the parties discussed H&K's withdrawal motion, and Cool Living has recently indicated it will pursue depositions).

(Motion to Withdraw as Counsel, at 2, Dkt. 20.)

On June 8, 2026, the Order on Motion to Withdraw was issued, which granted in part and denied in part the request to withdraw by Complainant's counsel. Withdrawal was granted effective June 14, 2026, but required counsel to represent Complainant at any deposition scheduled before the close of discovery on June 13, 2026, given that Respondents intended to take one more deposition not yet noticed. (Dkt. 22.)

On June 10, 2026, Complainant moved to quash the depositions of Anna Farkas and Tony Hopkins that Respondents had noticed to be conducted remotely on June 11 and 12, 2026. These witnesses were the only individuals identified by Complainant as having relevant knowledge in responses to written discovery. (Dkt. 23 and 24.) Because the discovery deadline was set for June 13, 2026, a status conference was held on June 12, 2026, to address the discovery dispute.

In the Order Following Status Conference served June 12, 2026, the discovery deadline was extended to July 13, 2026, for the limited of allowing the Respondents to depose Anna Farkas and Tony Hopkins remotely. As to all other discovery, the deadline of June 13, 2026, remained. The limited extension to allow the depositions of Anna Farkas and Tony Hopkins was granted because: the notices of deposition were timely served within the discovery period; Respondents had advised Complainant at the May 29 good faith conference on the Firm's motion to withdraw that depositions were contemplated and that its consent to withdrawal was conditioned on not prejudicing its discovery rights; both parties' counsel had been amendable to a mutual 30 day extension of the discovery period to allow additional discovery to be taken; and the depositions were served on short notice at the end of the discovery period only after Respondents' counsel learned that Complainant would not consent to any extension of the discovery period. (Dkt. 27.)

Despite not agreeing to a mutual 30 extension of the discovery period as discussed by counsel at the May 29 good faith conference, on June 16, 2026, Complainant filed the pending motion seeking to extend the June 13 discovery deadline for the limited purpose of deposing Michael Haahr in his individual capacity, a witness identified in written discovery as having relevant knowledge. (Dkt.28.) The motion states that the Firm assisted with drafting the motion despite its withdrawal effective June 14, 2026, for all matters other than defending the depositions of Anna Farkas and Tony Hopkins and the matters ancillary thereto. The motion states that the Firm does not intend to conduct the deposition of Michael Hahr, but rather proposes that Tony Hopkins depose the witness in his capacity as an officer and representative of Complainant.

II. Argument of the Parties

Complainant argues that good cause exists for an extension because the “multi-week process of managing its counsel’s withdrawal and seeking substitute counsel impeded Cool Living’s ability to move forward with its own deposition strategy.” (Motion, at 3.) In support of its argument, Complainant asserts that Respondents previously agreed to a 30 day extension of the discovery period, due process requires that the record be fully developed, and the limited extension will not impact the remaining schedule. Complainant asserts that Michael Haahr is a seminal witness because he “served as the primary point of contact for arranging the transportation of Cool Living’s cargo and was centrally involved in the disputes concerning nonpayment of invoices and the withholding of cargo. Mr. Haahr was the first individual identified in ALPI’s January 21, 2026 Initial Disclosures as possessing relevant knowledge and is referenced extensively throughout both parties’ document productions.” (Motion, at 5.)

Respondents argue that Complainant has not established good cause to extend the discovery deadline under the exceptional circumstances standard applicable to a motion made after the expiration of the applicable time period. Respondents assert that Complainant failed to act with diligence by waiting until after the close of discovery to seek to depose a witness first identified as having relevant knowledge in the initial disclosures served January 21, 2026. Respondents assert that Michael Haahr is a former employee who cannot be compelled to appear for deposition as a party pursuant to a notice of deposition but rather must be served a subpoena. Respondents assert that their willingness to consent to a mutual 30 day extension of the discovery period at the May 29 good faith conference on the Firm’s motion to withdraw does not reasonably extend to granting an extension weeks later when the discovery period has expired. Respondents assert that the Firm exceeded its limited capacity to represent Complainant after its withdrawal became effective by filing a motion seeking to conduct affirmative discovery beyond the defense of the depositions of Anna Farkas and Tony Hopkins. Respondents assert that the motion is untimely under 46 C.F.R. § 502.102(b) because it was filed after the expiration of the discovery deadline.

III. Relevant Law

A. Motions for Enlargement

Motions for enlargement of time “may be granted upon a showing of good cause.” 46 C.F.R. § 502.102(a). Although motions for enlargement of time generally should be sought at least seven days before the filing deadline, a party may file a motion for enlargement of time fewer than seven days before the filing deadline “where reasonable grounds are found for the failure to meet this requirement.” *Id.*

A court may modify the schedule on a showing of good cause if it cannot reasonably be met despite the diligence of the party seeking the extension. FED. R. CIV. P. 16(b)(4). Substitution of counsel, moreover, “will not, by itself, be considered good cause for delaying a proceeding.” 46 C.F.R. § 502.23(d).

B. Witness Testimony

Generally, a party is not under a legal obligation to produce a non-party as a witness at a deposition, unless the party has some control over the nonparty, such as where the non-party is an employee or an expert witness, or where the party is exerting some sort of influence over the witness as to appearing. Accordingly, a party is not under any legal obligation to compel a non-party former employee to appear for deposition. *Redneck v. Lowes Home Centers, LLC*, 2022 WL 2133799, at *5-6 (E.D. CA 2022).

Thus, while a party may be compelled by notice to produce itself and its current officers, directors, and managing agents, the attendance of a non-party witness may be compelled only by subpoena issued pursuant to 46 C.F.R. §§ 502.131.

IV. Discussion

The record establishes that Michael Haahr was first identified as a witness with knowledge in the initial disclosures served January 21, 2026, but that no effort was made to depose him during the discovery period that expired June 13, 2026.

The principal reason Complainant offers for the failure to depose Michael Haahr timely is that the “multi-week process of managing its counsel’s withdrawal and seeking substitute counsel impeded Cool Living’s ability to move forward with its own deposition strategy.” (Motion, at 3.) However, Complainant also states in its motion that “The Firm provided notice to Cool Living of its intent to withdraw from this FMC proceeding on May 12 and 13, 2026, and Cool Living then commenced the search for new counsel by contacting potential substitute counsel,” and asserts that the process of securing substitute counsel remains ongoing. (Motion, at 3.)

Complainant offers no explanation whatsoever for why no deposition was taken during the period from January 21, 2026, when Michael Haahr was identified as a person with knowledge in Respondents’ initial disclosures, and May 12 and 13, 2026, a period of more than three months. For this reason, I find that Complainant failed to exercise due diligence in conducting discovery and has not established good cause to extend the deadline in a manner that would impact the remaining schedule.

At the same time, the discovery deadline was extended to July 13, 2026, to allow the depositions of Anna Farkas and Tony Hopkins and the briefing schedule was extended accordingly. Respondents make no argument that extending the discovery schedule to July 13, 2026, for the limited purpose of deposing Michael Haahr would result in any prejudice. Moreover, I find that the record does not support a finding that such extension would prejudice Respondents.

In the absence of prejudice to Respondents and because conducting the deposition of Michael Haahr on or before July 13, 2026, would not impact the current schedule, the balance of competing interests tips in favor of allowing Complainant one last opportunity to develop the record fully.

As Michael Haahr is a former employee of Respondents and not a current employee, his deposition must be obtained by subpoena or voluntary appearance, and Respondents are not required to produce him pursuant to a notice of deposition as would be the case for a current officer, employee, or managing agent.

Given the limited time frame in the remaining schedule, the need to serve a subpoena or secure the voluntary attendance of Michael Haahr, and the complex legal issues involved in this proceeding, the Firm's suggestion that the deposition be accomplished by Tony Hopkins is not acceptable.

The record establishes that the Motion to Withdraw inaccurately stated that withdrawal could be accomplished without material adverse effects on the interest of the client because I was not advised that a witness identified in the initial disclosure needed to be deposed in order to fully develop the record but had not yet been deposed. Although there is no evidence to suggest that this omission was intentional or that it constitutes a knowing misrepresentation to the tribunal, it is clear that Complainant would suffer material adverse effect if Tony Hopkins, a non-lawyer representative, were required to secure the attendance of Michael Haahr and conduct a productive deposition in the limited time remaining. Accordingly, the Firm is directed to represent Complainant at any deposition of Michael Haahr and to attempt to compel his attendance by subpoena or voluntary appearance on or before July 13, 2026. Accordingly, and the order on motion to withdraw and order following status conference are vacated to the extent that they conflict with this order.

V. Order

For the foregoing reasons, it is

ORDERED that Complainant's Cool Living's Motion for Extension of the June 13 Deadline for the Limited Purpose of Deposing Respondents' Witness Michael Haahr in his Individual Capacity is **GRANTED IN PART and DENIED IN PART** subject to the conditions set forth in this order, it further

ORDERED that the discovery period is extended to July 13, 2026, for the limited purpose of allowing Complainant to depose Michael Haahr in his individual capacity on the condition that Complainant compels his attendance by subpoena or Michael Haahr appears voluntarily within the extended period, it is further

ORDERED Respondents are directed to facilitate the deposition of Michael Haahr by promptly providing Complainant and the Firm with current contact information for Michael Haahr, including his last known home and work addresses and all known telephone numbers, it is further

ORDERED the Order on Motion to Withdraw (Dkt. 22) and Order Following Status Conference (Dkt. 27) are **VACATED** to the extent they conflict with this order, it is further

ORDERED that the Firm is directed to represent Complainant at any deposition of Michael Haahr taken during the extended discovery period and for all ancillary matters related thereto.

**MARY A.
HERVEY -S**

Mary Apostolakos Hervey
Administrative Law Judge

Digitally signed by MARY A.
HERVEY -S
Date: 2026.06.24 17:45:45
-04'00'